

HOUSE No. 2312

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regarding municipal zoning powers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/17/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>3/6/2025</i>

HOUSE No. 2312

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 2312) of Paul McMurtry and Ryan C. Fattman relative to municipal zoning powers in relation to the installation of solar energy systems. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2082 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regarding municipal zoning powers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 3 of Chapter 40A of the General Laws is hereby amended by striking the
2 following language:

3 "No zoning ordinance or by-law shall prohibit or unreasonably regulate the installation of
4 solar energy systems or the building of structures that facilitate the collection of solar energy,
5 except where necessary to protect the public health, safety or welfare."